

56.	Duffy v. Hyundai Motor America 2025-01481786	Defendant Hyundai Motor America's demurrer to plaintiff Colin F. Duffy's First Amended Complaint [FAC] is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 5th cause of action for fraudulent inducement – concealment is sufficiently alleged. (<i>Roddenberry v. Roddenberry</i> (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41 [outside of duties imposed by statute or arising out of a confidential / fiduciary relationship, a duty to disclose may arise where "the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff," or from a "preexisting relationship between the parties, such as 'between seller and buyer ... or parties entering into any kind of contractual agreement;" internal citations omitted]; Complaint, ¶¶ 7 [warranty]; ¶¶ 48-52 [concealment of material facts regarding exclusively known defects and describing same]; 54 [duty to disclose]; 50-53, 55 [scienter]; ¶¶ 56, 57 [reasonable reliance]; ¶ 59 [proximately caused damages].) Defendant's motion to strike the punitive damages allegations in the FAC is DENIED. As the 5th cause of action is sufficiently pled, it supports punitive damages allegations. (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610.) Moving defendant shall file an Answer to the FAC within 10 days. The case management conference is continued to September 28, 2026 at 9:00 a.m. in Department C28. Plaintiff shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Plaintiffs H. Newell Williams, Jr. and Kimberly Clark-Williams' motion for leave to augment and/or amend their expert witness designation is GRANTED, on the conditions discussed below. (Code Civ. Proc., §§ 2034.610 [authorizing motion], 2034.620 [factors].) The court orders that plaintiffs are granted leave to amend their expert witness designation, to: (1) substitute James Gardner for David Spiegel; and (2) augment the subject matter of Grant Teeple's retention and testimony, as set forth in plaintiffs' amended expert designation (Garrison Decl., Ex. D). Said relief is conditioned upon: (1) plaintiffs making both Gardner and Teeple available for deposition prior to 6-5-26; and (2) plaintiffs shall be responsible for the costs of any

		additional deposition of Teeple and Gardner, including expert fees. (Code Civ. Proc. § 2034.620, subd. (d).) Moving party has shown that expert witness amendment / augmentation is due to mistake, inadvertence, surprise, or excusable neglect; that plaintiffs have made and/or will make the experts available for deposition; and that a proposed amended witness list has been served. (Code Civ. Proc., § 2034.620, subd. (c)(2); Garrison Decl., ¶¶ 3-5, 11.) The court has considered the factors set forth in Code Civ. Proc. § 2034.620, and has determined that granting the requested relief on the conditions set forth above is in the interest of justice. Moving parties shall give notice of this ruling.
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60.	Bianca v. Panda Motors, Inc. 2023-01300577	Plaintiff Guiseppe Bianca's motion to strike the Memorandum of Costs filed by defendant Panda Motors, Inc. dba California Motors Direct is GRANTED. California Rules of Court, Rule 3.1700(a)(1) establishes the fundamental timing requirement: "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." When service is by mail, the time to file the memorandum is extended by five calendar days. Ca. Civ. Pro. § 1013. Judgment was entered on December 2, 2025 (ROA 145.) Notice of Entry of Judgment was filed and served by Panda on December 5, 2025 (ROA 154.) As such, the Memorandum of Costs should have been filed no later than December 26, 2025 (15 days plus 5 for mailing.) It was not filed until February 5, 2026 (ROA 154.) The time provisions for filing a memorandum of costs, while not jurisdictional, are mandatory, and a party who fails to timely file is deemed to have waived the right to recover costs if the opposing party timely moves to strike. <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924.